

25TRCV03372 25TRCV03372

County: los-angeles

Division: Civil Law and Motion

Department: B

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Case Number: 25TRCV03372 Hearing Date: June 24, 2026 Dept: B

Moving Parties: Plaintiff Andre Mulligan

Responding

Party: Defendant Casino, LLC

Motion to Compel Further

Responses to Request for Production of Documents, Set One

The Court considered the moving, opposition, and reply

papers.

RULING

The

motion is DENIED.

BACKGROUND

On October

3, 2025, plaintiff Andre Mulligan (self-represented) filed a complaint against El

Dorado Enterprise Inc. dba Hustler Casino and Elite Casino Services Inc.

On

October 16, 2025, plaintiff filed a first amended complaint for (1) assault, (2) battery, (3) false imprisonment, (4) negligence, (5) negligent hiring, training, and supervision, (6) IIED, and (7) civil rights violations/racial profiling/excessive force.

On

December 5, 2025, the Court sustained with leave to amend defendant Casino's demurrer to the seventh cause of action.

The Court granted the motion to strike with leave to amend as to punitive damages and without leave to amend as to attorney's fees.

On

January 5, 2026, plaintiff filed a second amended complaint.

On

April 1, 2026, at a hearing on plaintiff's motion to compel further responses and production of documents, the Court signed and filed the stipulated protective order and placed the motion off calendar.

On May

4, 2026, the Court denied plaintiff's motion to compel further responses and production of documents without prejudice.

LEGAL

AUTHORITY

45-Day

Rule: This motion must be served within 45 days

after service of the response in question (extended if served by mail,

overnight delivery, or fax; see CCP §1013); otherwise, the demanding party

waives the right to compel any further response to the CCP §2031.010

demand. CCP §§2031.310(c), 2016.050; see

Sperber v. Robinson (1994) 26 Cal.

App. 4th 736, 745. The 45-day time limit

is mandatory and jurisdictional. Sexton v. Superior Court (1997) 58 Cal.

App. 4th 1403, 1410. The parties,

however, can also agree in writing on a specific later date by which to file

the motion to compel. CCP §2031.310(c).

Meet-and-Confer

Requirement: The motion to compel further responses must

be accompanied by a declaration showing “a reasonable and good faith attempt”

to resolve the issues outside of court (so-called “meet and confer”). CCP §§2016.040, 2031.310(b)(2).

Separate

Statement: Any motion involving the content of a

discovery request or the responses to such a request shall be accompanied by a

separate statement. This includes a

motion to compel further responses to demand for inspection of documents or

tangible things. CRC Rule

3.1020(a)(3).

Request

for Production of Documents

On

receipt of a response to an inspection demand, the demanding party may move for

an order compelling further responses to the demand if the demanding party

deems that any of the following apply:

(1) a statement of compliance with the demand is incomplete; (2) a

representation of inability to comply is inadequate, incomplete, or evasive; or

(3) an objection in the response is without merit or too general. CCP § 2031.310(a).

A

statement of compliance shall state that the production, inspection, and

related activity demanded will be allowed either in whole or in part, and that

all documents or things in the demanded category that are in the possession,

custody, or control of that party and to which no objection is being made will

be included in the production. CCP §

2031.220.

A

motion to compel further response to requests for production “shall set forth specific facts showing good cause justifying the discovery sought by the inspection demand.” CCP §

2031.310(b)(1). “To establish ‘good

cause,’ the burden is on the moving party to show both: [1] Relevance

to the subject matter (e.g., how the information in the documents would

tend to prove or disprove some issue in the case); and [2] Specific facts

justifying discovery (e.g., why such information is necessary for trial

preparation or to prevent surprise at trial).

The fact that there is no

alternative source for the information sought is an important factor in

establishing ‘good cause’ for inspection.

But it is not essential in

every case.” Weil & Brown, Civil Procedure Before Trial, 8:1495.6

(citations omitted). “Declarations are

generally used to show the requisite ‘good cause’ for an order to compel

inspection. The declarations must

contain ‘specific facts’ rather than mere conclusions.” Id.

at 8:1495.7 (citation omitted).

“If

‘good cause’ is shown by the moving party, the burden is then on the responding party to justify any objections made to document disclosure (the same as on motions to compel answers to interrogatories or deposition questions. . .).” Id. at 8:1496 (citation omitted).

DISCUSSION

Plaintiff

requests that the Court compel defendant Casino, LLC as follows: 1. To provide full and complete further responses to plaintiff’s discovery requests without evasive objections and incomplete answers; 2. To provide full and complete further production of responsive documents, electronically stored information, surveillance footage, incident-related communications, policies, procedures, certifications, training records, and related evidence; 3. To produce original native-format surveillance evidence and responsive electronically stored information suitable for forensic review, preservation, metadata analysis, clipping, and expert review; 4. To compel production of all responsive surveillance footage from all available angles, body camera footage, retention records, incident reports, data entry records, internal communications, and chain of custody documentation relating to the October 4, 2023 incident; 5. To compel production of policies and procedures relating to self-exclusion, use of force, detention,

escort/removal procedures, de-escalation, and surveillance retention; and 6. To

compel production of documents sufficient to identify involved security

personnel, assignments, positions, certifications, and training relating to use

of force and incident handling.

Plaintiff also requests monetary sanctions.

The

notice does not state any statutory authority.

Plaintiff's

separate statement refers to:

Request

for Production, Nos. 11 (all training manuals, policies, procedures, and

instructional materials relating to security officer use of force detention,

escort, restraint, and de-escalation procedures), 13 (all email,

communications, memoranda, incident-related communications and ESI relating to

incident), 15 (all documents relating to surveillance video preservation,

retention, storage, access, and chain of custody relating to incident); and

Interrogatories,

Nos. 6 (identify all training provided to involved security personnel) and 8

(identify all policies, procedures, and protocols relating to use of force,

self-exclusion handling, detention, escort/removal, and surveillance

preservation).

Plaintiff

does not identify which set number that the requests and interrogatories

belong. Plaintiff attached request for

production of documents, set one, which does not include Nos. 11, 13, and

15. Plaintiff attached defendant's

responses to request for production, set two, which contains Nos. 11, 13, and

15 but the requests are not the same as listed in the separate statement. Plaintiff also attached "supplemental

requests for production (set two) and special interrogatories (set two)," which

are numbered 1 through 15 and 1 through 10, respectively. The requests and interrogatories are not the

same as listed in the separate statement.

In the

motion, plaintiff asserts that despite entry of the protective order,

substantial responsive discovery remains outstanding. Plaintiff states that defendant produced

surveillance access links, but the videos produced were temporary,

non-downloadable, non-native format, and unsuitable for forensic review,

metadata review, expert analysis, preservation, clipping, or meaningful

litigation review.

In

opposition, defendant argues that plaintiff has not established good cause for

further production. Defendant represents

that plaintiff was provided with all responsive videos, which were produced in

a “converted format” so that plaintiff would have no issue viewing them. Defendant notes that following receipt of the

videos, plaintiff advised that the videos had a “creation and modification date

of May 4, 2026” and requested that defense counsel provide the videos in their

“original native” format, which defendant subsequently produced. Following receipt, plaintiff advised that he

was unable to view the videos in their “original” format, which defense counsel

explained was the reason that “converted format” videos were produced. See Nicholas Koumoulis decl.

In

reply, plaintiff argues that the discovery dispute is much broader than the

production of certain surveillance video.

Plaintiff contends that defendant does not explain how defendant

determined that no additional responsive materials exist and does not identify

the scope of defendant's search efforts.

Plaintiff also contends that he continues to seek the policies,

procedures, directives, manuals, and training materials that were in effect on

the date of the incident, although plaintiff acknowledges that defendant

previously produced materials. He

asserts that he is unable to determine whether subsequently produced materials

governed employee conduct on the date of the incident. Plaintiff further asserts that when viewing

the produced footage, he identified “additional issues,” but is not requesting

the Court adjudicate “any separate claim” through the motion.

The

Court rules as follows: The Court finds

that the motion is defective. Plaintiff

again fails to identify what specific set of discovery requests he seeks

compliance with, apparently combines different types of discovery (requests for

production and special interrogatories), and provides a separate statement that

does not state the discovery requests and responses verbatim. Further, plaintiff has not shown good cause

for further video production and acknowledges he received further production as

to policies, procedures, and training.

ORDER

The motion is DENIED.

Defendant is to give notice of ruling.